NORTH CAROLINA
WAKE COUNTY
IN THE GENERAL COURT OF JUSTICE
SUPERIOR COURT DIVISION

24CV040619-910

JEFFERSON GRIFFIN,

Petitioner,

v.

NORTH CAROLINA STATE BOARD OF ELECTIONS,

Respondent.

NOTICE OF APPEAL AND VERIFIED PETITION FOR JUDICIAL REVIEW (NEVER RESIDENTS)

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Pursuant to sections 150B-45 and 163-182.14(b) of the General Statutes, the Honorable Jefferson Griffin petitions this Court for judicial review of the Decision and Order entered against him by the State Board of Elections on 13 December 2024 regarding one categories of protests filed by Judge Griffin. A copy of the decision is attached as Exhibit A. Petitioner respectfully requests that the Court reverse the final decision, grant judgment to Petitioner, and stay the certificate of election for the race protested by Petitioner pending resolution through judicial review.

INTRODUCTION

1. On 19 November 2024, Judge Griffin filed six categories of election protests with county boards of election in all 100 of North Carolina's counties. On 13 December 2024, the State Board issued a final decision dismissing three of those categories of protests. This petition seeks judicial review of one of those categories of the dismissed protests: protests challenging the ballots cast by individuals who have never lived in North Carolina (Never Residents).

PARTIES AND NATURE OF THE ACTION

2. The Honorable Jefferson Griffin is a judge on the North Carolina Court of Appeals. He is the Republican candidate in the 2024 general election for Seat 6 of the Supreme Court of North Carolina. Judge Griffin's substantial rights were prejudiced by the decision on his election protests because it affected the outcome of the election.

3. The Honorable Allison Riggs currently holds the office of Seat 6 of the Supreme Court of North Carolina. Justice Riggs is the Democratic candidate for that office.

4. The State Board of Elections (the "Board" or "Respondent") is an administrative agency under Administrative Procedure Act. See N.C. Gen. Stat. § 150B-2(1b).

5. The North Carolina Democratic Party ("NCDP") is a state committee, as that term is defined by 52 U.S.C. § 30101. The NCDP's purpose is to elect Democratic candidates to public office in North Carolina, including Justice Riggs who is the Democratic nominee for associate justice of the North Carolina Supreme Court.

JURISDICTION AND VENUE

6. For judicial review of a final decision of the State Board on an election protest, an "aggrieved party has the right to appeal the final decision to the Superior Court of Wake County within 10 days of the date of service." N.C. Gen. Stat. § 163-182.14.

7. The Board entered a final decision on the election protests at issue on 13 December 24 and the decision was placed in the mail for service on Judge Griffin via FedEx on 13 December 2024. This appeal has been filed within 10 days of the date of service of that final decision.

8. The Court has personal jurisdiction over the Board, Justice Riggs, and the NCDP because this petition is being served on them pursuant to N.C. Gen. Stat. § 150B-46.

BACKGROUND

9. On 19 November 2024, Judge Griffin filed election protests with county boards of election in all 100 of North Carolina's counties.

10. On 20 November 2024, the Board assumed jurisdiction of each of these three categories of protests and consolidated them for review. Ex. A, p. 1.

11. On 13 December 2024, the Board issued a final decision dismissing the three categories of protests.

Service of Protests on Affected Voters

12. The State Board, before addressing the merits of the three categories of protests, considered whether Judge Griffin's service of the protests on voters satisfied the Board's expectations.

13. There is no statutory authority for the Board to demand that a protestor serve copies of protests on affected parties. Rather, N.C. Gen. Stat. § 163-182.10(b) clearly assigns that duty to the county boards.

14. Despite the lack of statutory authority for compelling a protester to serve affected parties, the State Board promulgated a protest form that included a demand that protestors "must serve copies of all filings on every person with a direct stake in the outcome of this protest." 08 N.C. Admin. Code § 02.0111 (the protest-form template). The service could be accomplished by "transmittal through U.S. Mail" and had to "occur within one (1) business day" of filing materials. Id.

15. Even if such a rule is valid, Judge Griffin complied with the Board's service demand by mailing a postcard by U.S. First-Class Mail to over 60,000 voters at the voters' addresses of record. The postcard stated the following:

> * * * NOTICE * * *
> [[First Name]] [[Middle Name]] [[Last Name]], your vote may be affected by one of more protests filed in the 2024 general elections. Please scan this QR code to view the protests filings. Please check under the county in which you cast a ballot to see what protest may related to you…. For more information on when your County Board of Elections will hold a hearing on this matter, please visit the State Board of Elections' website link found on the Protest Cite (via the QR code).

16. The State Board voted 3-2 that Judge Griffin's service on the voters did not satisfy the service requirement imposed by the protest form.

Never Resident Voting

17. Judge Griffin filed protests that challenged ballots cast by "Never Residents."

18. The North Carolina Constitution requires a person to be a bona fide resident of North Carolina when they vote for state offices.

19. In the 2024 general election, however, the county boards of election accepted ballots from people who submitted federal forms that stated they "have never lived in the United States."

20. Someone who has never lived in the United States cannot be a bona fide resident of North Carolina under the state constitution.

21. Judge Griffin's protest identified approximately 267 ballots that were cast in the Supreme Court contest by these Never Residents. There are more Never Residents who voted that can be identified by county boards. It was unlawful to count these ballots.

22. The State Board voted 3-2 that the protests challenging voters who had never resided in North Carolina (or the United States, for that matter), did not establish probable cause of an irregularity, election law violation, or misconduct.

EXCEPTIONS AND GROUNDS FOR RELIEF

23. The final agency decision is in violation of constitutional provisions, in excess of the Board's statutory authority or jurisdiction, was made upon unlawful procedure, and is affected by other error of law.

24. Judge Griffin explicitly states the following exceptions to the decision of the Board subject to judicial review:

25. That Judge Griffin's election protests should have been filed as voter challenges.

26. That the State Board has statutory authority to impose a service obligation through rulemaking on election protestors such as Judge Griffin. See Ex. A, pp. 6-7.

27. That Judge Griffin's service of the protests failed to comply with the requirements in the protest-form template. See Ex. A, pp. 8-11.

28. That Judge Griffin's service of the protests did not satisfy procedural due process. See Ex. A, pp. 11-14.

29. That individuals who have never lived in North Carolina can satisfy the residency requirement of the North Carolina constitution and, as a result, be eligible to vote in a state election. See Ex. A, pp. 29-32.

30. That N.C. Gen. Stat. § 163-282.(1)(e) cannot be construed in a way that complies with the residency requirement of the North Carolina Constitution, as applied to this state election. See Ex. A, pp. 29-32.

31. That, if N.C. Gen. Stat. § 163-282.(1)(e) cannot be construed in a way that complies with the residency requirement of the North Carolina constitution, then the statute is unconstitutional as applied to Never Residents. See Ex. A, pp. 29-32.

RELIEF SOUGHT

Judge Griffin respectfully requests that the Court grant the following relief:

1. Issue a temporary restraining order and preliminary injunction that, pursuant to N.C. Gen. Stat. § 163-184(b), that stays the State Board's certification of the election until this Court or an appellate court orders otherwise;

2. Reverse the decision of the Board;

3. Remand and instruct the Board to determine the winner of the Supreme Court contest without counting the ballots from the category of unlawful ballots identified in protest at issue in this petition; and

4. Grant such other and further relief as the Court deems appropriate.

This the 20th day of December, 2024.

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